

Klovy Chat Terms of Service

Last updated: September 1, 2026

Introduction

These Terms of Service ("**Terms**") constitute a legally binding agreement between you and the operator of Klovy Chat, governing the rules for accessing and using the Klovy Chat platform.

We understand that legal documents can sometimes be difficult to read – we have therefore tried to formulate the provisions below in a way that is as understandable as possible without compromising their binding nature. Please read the entire document carefully before using the Service.

By accessing Klovy Chat, creating an account, or otherwise using the Service, you confirm that you have read, understood, and accepted these Terms, together with the Privacy Policy and Community Guidelines. If you do not agree with any of the provisions below, you should not use the Service.

Definitions

- **Terms** – this document, together with any attachments and documents referenced herein.
- **User / You** – any individual or legal entity using the Service.
- **Operator** – the person responsible for operating, maintaining, and developing Klovy Chat ("we", "us", "our").
- **Klovy Chat** – an online communication service enabling the exchange of messages, voice and video calls, and other communication features ("Service", "Platform", "Application").
- **Account** – an individual User profile created for the purpose of using the Service.
- **Content** – any materials uploaded, published, stored, or shared by the User through the Service, including messages, files, images, audio, and video.
- **Community Guidelines** – a separate document defining rules regarding acceptable behavior and content on the Platform.

1 Acceptance and Scope of the Terms

These Terms apply to all persons visiting the Platform, registering an Account, or otherwise using the Service. By using the Service, you represent that:

- you meet the age requirements described in Section 2,
- you have the legal capacity to enter into this agreement, and if you are acting on behalf of a minor or a third party, you have the appropriate authorization to do so,
- you have read and accepted the Terms, Privacy Policy, and Community Guidelines,
- the registration information you provide is true, current, and complete.

2 Age Requirements and Accounts

a) Age Requirements

- **Under 13 years of age** – use of the Service is prohibited.
- **13–17 years of age** – use of the Service is permitted only with the consent of a parent or legal guardian, who is responsible for the minor's activity on the Platform.
- **18 years of age and older** – full use of the Service without age-related restrictions.

We reserve the right to request age verification and to suspend an Account in the event of a reasonable suspicion of a violation of the above rules.

b) Registration and Account Security

The User is responsible for maintaining the confidentiality of login credentials, including their password and other authentication mechanisms, and for all activities carried out through their Account – regardless of whether they were performed personally or by a third party to whom the User provided access.

If the User suspects unauthorized access to their Account or a security breach, they are required to promptly notify the Klovly Chat operator at the address indicated in the "Contact" section.

The Klovly Chat operator is not responsible for losses resulting from the User's failure to follow Account security rules, in particular sharing login credentials with third parties.

c) One Account per Person

Unless otherwise specified for a particular Service feature, each User may have one primary Account. Creating multiple Accounts in order to circumvent restrictions, bans, or the Community Guidelines is prohibited.

3 Description of the Service

Klovy Chat enables real-time communication through text messages, voice calls, video calls, and other features made available as part of the Platform.

The Service is continuously developed. The Klovy Chat operator reserves the right to add, modify, restrict, or discontinue individual features of the Service at any time, where possible with appropriate advance notice, unless the change results from technical or security reasons or legal requirements that require immediate action.

4 Rules for Using the Service

When using Klovy Chat, the User agrees not to:

- violate applicable law or the rights of third parties, including intellectual property rights,
- take actions intended to disrupt the operation of the Service, including attempts to gain unauthorized access to systems, other Users' Accounts, or Klovy Chat infrastructure,
- distribute malware, spam, or misleading content,
- impersonate other individuals or entities in a misleading manner,
- use the Service for activities that violate the Community Guidelines, including harassment, hate speech, or the distribution of content depicting the exploitation of minors,
- attempt to reverse engineer, decompile, or otherwise obtain the source code of the Service, except to the extent expressly permitted by applicable law,
- use automated scripts, bots, or other tools to mass-collect data from the Platform (scraping) without the explicit consent of the operator.

The full and binding set of rules concerning content and behavior is contained in the Community Guidelines, available through Klovy Chat or at the address indicated on the Platform.

5 User Content

The User retains all intellectual property rights to the Content they create and share through the Service. The Klovy Chat operator does not claim ownership of such Content.

To enable the operation of the Service (e.g., uploading, temporary storage, displaying, and delivering messages to recipients), the User grants the Klovy Chat operator a limited, non-exclusive, royalty-free license to store, process, and transmit the Content solely to the

extent necessary to provide the Service. This license expires when the relevant Content is deleted, subject to backup copies retained for a limited period in accordance with the Privacy Policy.

The User represents and warrants that:

- they possess all necessary rights to the Content they share or are otherwise authorized to share it under the terms described above,
- the Content does not infringe the rights of third parties or applicable law.

The Klovly Chat operator reserves the right to remove Content that violates these Terms or the Community Guidelines, without prior notice where the nature of the violation requires such action.

6 Klovly Chat Intellectual Property

The name Klovly Chat, logo, interface, source code of the Service, and other elements of the Platform that are not User Content are owned by the Klovly Chat operator or its licensors and are protected by copyright and other intellectual property laws.

These Terms do not grant the User any rights to Klovly Chat trademarks, logos, or other identifiers, except for the limited right to use the Service for its intended purpose.

7 Third-Party Copyright

Klovly Chat respects intellectual property rights and expects the same from its Users. If the operator receives a credible report of copyright infringement, the Klovly Chat operator will take appropriate action, including removing the disputed Content and, in the case of repeated infringements, suspending or terminating the Account of the User responsible for the violations.

8 Suspension and Termination

The Klovly Chat operator may suspend or permanently terminate a User's access to the Service, in whole or in part, without prior notice, particularly when:

- the User violates these Terms or the Community Guidelines,
- required by applicable law or a decision of a competent authority,
- the User's actions create a risk of harm to the Service, other Users, third parties, or the User themselves.

The User may stop using the Service and delete their Account at any time in accordance with the instructions available in the Application settings.

Provisions that by their nature should survive termination of the agreement (including, but not limited to, sections concerning intellectual property, indemnification, disclaimers of warranties, and limitations of liability) shall remain in effect.

9 Disclaimer of Warranties

The Service is provided on an "as is" and "as available" basis, without any warranties, express or implied, including warranties of merchantability, fitness for a particular purpose, or non-infringement of third-party rights.

The Klovly Chat operator does not guarantee that the Service will operate uninterrupted, error-free, or free from security threats, although reasonable efforts are made to ensure this.

10 Limitation of Liability

To the maximum extent permitted by applicable law, the Klovly Chat operator shall not be liable for any indirect, incidental, consequential damages, or lost profits arising from the use of or inability to use the Service.

The above limitation does not exclude liability that cannot be excluded or limited under mandatory provisions of applicable law, including provisions protecting consumers.

11 Indemnification

To the extent permitted by law, the User agrees to indemnify and hold harmless the Klovly Chat operator, its representatives, employees, and associates from any claims, damages, and costs (including reasonable legal fees) arising from: (a) Content shared by the User, (b) the User's use of the Service in violation of these Terms, or (c) the User's infringement of third-party rights.

12 Third-Party Services and Websites

The Platform may contain links to websites and services operated by entities not affiliated with Klovly Chat. Clicking such a link is done at the User's sole risk. The Klovly Chat operator does not control or assume responsibility for the content, privacy policies, or practices of such third parties and encourages Users to review their terms before using them.

13 Force Majeure

The Klovly Chat operator shall not be liable for failure to perform or improper performance of obligations under these Terms if caused by circumstances beyond its reasonable control, including, but not limited to, network infrastructure failures, natural disasters, acts of war, decisions of public authorities, or large-scale cyberattacks.

14 Changes to the Terms

The Klovly Chat operator may amend these Terms at any time. Users will be informed of material changes at least 30 days in advance – through a notification in the Application, an email, or publication of an updated version of the document indicating the new effective date.

Upon first registration for the Service, the Terms applicable at that time become binding immediately upon acceptance; the notification period described above applies only to subsequent changes introduced for already registered Users.

Continued use of the Service after the effective date of the changes constitutes acceptance of the amended Terms. If the User does not accept the changes, they should stop using the Service and delete their Account before that date.

15 Final Provisions

a) Assignment

The User may not transfer any rights or obligations arising under these Terms without the prior written consent of the Klovly Chat operator. The Klovly Chat operator may transfer these Terms, in whole or in part, to another entity in connection with a merger, acquisition, reorganization, or sale of assets, provided that this does not materially restrict the User's rights under these Terms.

b) Severability

If any provision of these Terms is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect, and the invalid provision shall be replaced with a provision that most closely reflects its original purpose.

c) No Waiver

Failure by the Klovly Chat operator to exercise any right under these Terms shall not constitute a waiver of that right in the future.

d) Entire Agreement

These Terms, together with the Privacy Policy and Community Guidelines, constitute the entire agreement between the User and the Klovly Chat operator regarding the use of the Service and supersede all prior agreements concerning the same subject matter.

e) Governing Law and Dispute Resolution

These Terms are governed by the laws of Poland. Any disputes arising from these Terms or from the use of the Service shall be resolved by a competent court in accordance with applicable law, while preserving the rights afforded to the User as a consumer under mandatory provisions of the law of their country of residence.

Contact

If you have any questions regarding these Terms or the operation of Klovly Chat, please contact us:

kontakt@klovly.chat